

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DELLON DAVIS,

Plaintiff,

-against-

POLICE OFFICER FRANK BEERS, Shield No. 17641,
POLICE OFFICER MARIO BUENO, Shield No. 11861,
and POLICE OFFICERS JOHN DOE 1-10,

Defendants.
----- X

SUMMONS

Index No.:

The Basis of Venue is:

Location of Incident

Plaintiff designates KINGS
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
March 26, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER FRANK BEERS, Shield No. 17641, NYPD 71st Precinct, 421 Empire
Boulevard, Brooklyn, NY 11225

POLICE OFFICER MARIO BUENO, Shield No. 11861, Manhattan Housing Borough,
2768 Frederick Douglas Boulevard, New York, NY 10039

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DELLON DAVIS,

Plaintiff,

-against-

POLICE OFFICER FRANK BEERS, Shield No. 17641,
POLICE OFFICER MARIO BUENO, Shield No. 11861,
and POLICE OFFICERS JOHN DOE 1-10,

Defendants.

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, DELLON DAVIS, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth and Fourteenth Amendments to the United States Constitution. On July 31, 2019, at approximately 3:00 p.m., plaintiff DELLON DAVIS was subjected to an unlawful stop, frisk, search, detention, and false imprisonment, while lawfully present in the vicinity of 1702 Union Street, in Brooklyn, New York. In addition, Plaintiff was subjected to excessive force at the 71st Precinct when he was physically injured by the Defendant Officers on hand, causing a permanent scar. Plaintiff spent approximately 24 hours unlawfully in police custody. Thereafter, the defendant police officers denied plaintiff the right to a fair trial by forwarding false information to the District Attorney's Office. All charges against Plaintiff were dismissed on or about January 21, 2020. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questioned, frisked, searched, unlawfully arrested, and denied the plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff DELLON DAVIS is a resident of the State of New York.

3. POLICE OFFICER FRANK BEERS, Shield No. 17641, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident POLICE OFFICER FRANK BEERS, Shield No. 17641, was assigned to the 71st Precinct.

5. POLICE OFFICER FRANK BEERS, Shield No. 17641, is being sued in his individual and official capacities.

6. POLICE OFFICER MARIO BUENO, Shield No. 11861, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident POLICE OFFICER MARIO BUENO, Shield No. 11861, was assigned to the 71st Precinct.

8. POLICE OFFICER MARIO BUENO, Shield No. 11861, is being sued in his individual and official capacities.

9. POLICE OFFICER JOHN DOE 1-10, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained, managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On July 31, 2019, at approximately 3:00 p.m., plaintiff was lawfully walking in the vicinity of 1702 Union Street, in Kings County, New York.

15. The defendant police officers unlawfully approached plaintiff without reasonable suspicion or probable cause.

16. At no time prior to being stopped by the officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

17. The Defendant Police Officers asked for Plaintiffs Identification, which Plaintiff complied.

18. Defendant Police Officers then asked Plaintiff if he knew anything about guns in the area, to which Plaintiff replied "no."

19. Suddenly, without any provocation or legal justification, the defendant police officer unlawfully handcuffed Plaintiff.

20. The Defendant Officers searched Plaintiff and found no contraband or anything illegal on him.

21. At no point in time did plaintiff resist arrest in any way.

22. Defendant Officers place Plaintiff under arrest for no legal reason.

23. Defendants then drove Plaintiff to the 71st Precinct, where Plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

24. While at the 71st Precinct, a Defendant Officer slammed Plaintiff onto the floor, and injured his hand, while removing a ring from Plaintiff's finger.

25. Plaintiff was bleeding from his hand as a result of this excessive force by Defendant Officers.

26. Plaintiff has a permanent scar on his hand as a result of this excessive force.

27. Thereafter Plaintiff was transferred to Kings County Central booking.

28. The Defendant Officers falsely stated to the Kings County District Attorneys Office that Plaintiff had committed a crime despite knowing that they lacked a legal and factual basis to allege that Plaintiff committed any crime.

29. On May 20, 2019, after approximately 24 hours unlawfully in police custody, Plaintiff was arraigned in Kings County Criminal Court and charged with crimes that the defendant officers had no basis to allege that he committed.

30. All charges against Plaintiff were dismissed against Plaintiff on January 21, 2020.

31. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, seizure, false arrest, denial of fair trial, and excessive force used against plaintiff.

32. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful seizure, and excessive force against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

33. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.

34. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, subjected to denial of his due process rights in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

37. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

38. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

39. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

40. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 40 with the same force and effect as if more fully set forth at length herein.

42. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

43. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

44. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

47. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

48. The plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

50. Defendants lacked probable cause to search plaintiff.

51. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

54. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

Denial of Right to Fair Trial/Due Process

55. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 54 with the same force and effect as if more fully set forth at length herein

56. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

57. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

58. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

59. In withholding/creating false evidence against plaintiff Dellon Davis, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under

the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

60. As a result of the foregoing, plaintiff DELLON DAVIS, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

61. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

62. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

63. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Excessive Force

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The use of excessive force by defendants by, amongst other things, by grabbing plaintiff's hand and ripping his ring off causing laceration and permanent scarring constituted objectively unreasonable physical seizures of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

67. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 66 with the same force and effect as if more fully set forth at length herein.

68. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Dellon Davis. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

69. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

70. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

73. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

74. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 73 with the same force and effect as if more fully set forth at length herein.

75. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

76. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

77. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 76 with the same force and effect as if more fully set forth at length herein.

78. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

79. Defendants failed to intervene to prevent the unlawful conduct described herein.

80. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

81. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

82. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

83. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

84. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TENTH CAUSE OF ACTION

Malicious Prosecution

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

86. The acts and conduct of the defendants constitute malicious prosecution under the United States Constitution.

87. Defendants commenced and continued a criminal proceeding against plaintiff.

88. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

89. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

90. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution.

92. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

93. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

94. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff DELLON DAVIS demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
March 26, 2020

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: POLICE OFFICER FRANK BEERS, Shield No. 17641, NYPD 71st Precinct, 421 Empire Boulevard, Brooklyn, NY 11225

POLICE OFFICER MARIO BUENO, Shield No. 11861, Manhattan Housing Borough, 2768 Frederick Douglas Boulevard, New York, NY 10039

ATTORNEY'S VERIFICATION

CAITLIN ROBIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **CAITLIN ROBIN & ASSOCIATES PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
March 26, 2020



CAITLIN ROBIN, ESQ.